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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

ESTOPPEL EVIDENTIARY APPENDIX

ESTOPPEL EVIDENTIARY APPENDIX — EXHIBIT-BY-EXHIBIT ESTOPPEL RECORD

PURPOSE

This appendix maps each evidentiary item to the estoppel chain: (1) service/production date with proof; (2) deposition/hearing cite showing defense use or acquiescence; (3) substitution-of-counsel fact confirming transfer; (4) defense silent conduct (dates of non-objection); (5) trial-day denial cite; and (6) estoppel doctrine triggered. The six-column format allows the Court to trace each

item through the complete chain from receipt to reversal.

MASTER ESTOPPEL RECORD (LIST)

- **2021 SFPD transmission to Dolan — Service/production:** May 2021 (approx.) — Feb. 18, 2025 Hr’g Tr. p. 139, l. 11 (“Dolan had a copy since 2021”). **Deposition/hearing:** Same hearing testimony ties knowledge window to prior defense era. **Substitution (TxID 69953800):** May 4, 2023 — file transferred. **Silent conduct:** Runs alongside 883-day post-service window. **Trial-day denial:** Feb. 18, 2025 Hr’g Position-B (p. 181 ll. 6–23). **Doctrine(s):** § 623 element 1 (knowledge/notice extends to 2021 transmission).
- **911 Audio Recording — Service/production:** Aug 18, 2022 — Feb. 18, 2025 Hr’g Tr. pp. 139–140 (Jessup: produced/served in discovery, including in connection with Rosario depo; content includes operator/yes exchange and Rosario’s own voice). **Deposition/hearing:** Aug. 18, 2022 Rosario depo (Chambers); Sept. 30, 2022 Abdelhalim depo (Chambers; 911-related testimony). **Substitution:** May 4, 2023 — file transferred from Chambers/CSK to PSA. **Silent conduct:** 883 days: Aug 18, 2022 – Jan 17, 2025. No motion to compel, no discovery objection, no meet-and-confer. **Trial-day denial:** MIL No. 17 (Jan. 17, 2025): “no idea where it came from”; Feb. 18, 2025 Hr’g: “news to me” (p. 141, ll. 4–11). **Doctrine(s):** § 623 (silence); § 1414(b) (acquiescence); judicial estoppel (Jackson).
- **Body-Worn Camera Footage (~5 videos) — Service/production:** Aug–Sep 2022 — Feb. 18, 2025 Hr’g Tr. pp. 139–140 (Jessup: “body cam footage, about five videos”). **Deposition/hearing:** Same Aug.–Sep. 2022 production/service; Rosario 8/18/22 and Abdelhalim 9/30/22 deposition course. **Substitution:** May 4, 2023 — file transferred. **Silent conduct:** 883 days silence. **Trial-day denial:** Apr. 16, 2025 admission: “They were provided by Dolan” (RT 7, p. 213, ll. 13–15); defense curated “five videos” for trial. **Doctrine(s):** § 623; § 1414(b); judicial estoppel.
- **CAD Logs — Service/production:** Aug–Sep 2022 — Feb. 18, 2025 Hr’g Tr. pp. 139–140 (Jessup: “as well as the CAD log”). **Deposition/hearing:** Same production/service and deposition course as 911/BWC. **Substitution:** May 4, 2023 — file transferred. **Silent**

- conduct:** Sept. 9, 2024: CAD identifiers served on Reyna; no objection raised. 883 days total. **Trial-day denial:** MIL No. 17; Feb. 18 hearing. **Doctrine(s):** § 623; § 1414(b).
- **SFPD Report 210079556 — Service/production:** Feb. 26, 2024 — produced in response to Reyna Compex subpoena. **Silent conduct / knowledge:** Feb. 1, 2024 subpoena issued by Reyna to SFPD; Feb. 26, 2024 production. Defense-initiated. **Trial-day denial:** Apr. 16, 2025 trial: “not anything that we received as part of the subpoena” (RT ll. ~2874). **Doctrine(s):** § 623 (Reyna knew of subpoena); § 1414(b) (subpoena presupposes existence).
 - **Compex Subpoena Order CA1147102-021 — Service/production:** Feb. 1, 2024 — issued by Reyna/PSA to SFPD. **Doctrine(s):** Evidence of defense knowledge; § 623 element 1 (knowledge).
 - **CSAA Feb. 25, 2021 Denial Letter — Service/production:** Feb. 25, 2021 — 21 days post-collision. **Doctrine(s):** Institutional context; CSAA direction evidence.
 - **Substitution of Attorney (TxID #69953800) — Service/production:** May 4, 2023 — filed in CGC-21-594102. **Substitution:** Transfers defense file from Chambers/CSK to PSA. **Silent conduct:** File transfer point; production history not conveyed (per FAC allegations). **Doctrine(s):** § 1414(b) (transfer presupposes authenticity of transferred materials).
 - **Abdelhalim Sept. 30, 2022 Deposition — Date:** Sept. 30, 2022. **Deposition/hearing:** Chambers present; Abdelhalim 911-related testimony; marked exhibits images. **Substitution context:** Transcript in defense file at substitution. **Silent conduct:** No written authenticity/provenance challenge for 883 days despite receipt and deposition course. **Doctrine(s):** § 1414(b) (acquiescence through receipt and course of conduct).
 - **Abdelhalim Apr. 17, 2025 Authentication — Date:** Apr. 17, 2025. **Record:** RT 8, p. 108, l. 28: “Yes. That is my voice.” **Doctrine(s):** Party admission; § 1220; ratification.
 - **RT 8 court order: strip AI/auto-captions from BWC — Trial Day 8. Record:** RT 8, PG 12–14 (court orders AI/auto captions stripped from body-cam presentation). **Doctrine(s):** Judicial estoppel / procedure channel.

TIMELINE: 883-DAY SILENCE WINDOW

The following sequence runs from **August 18, 2022** (911 audio served; start of the pretrial window) through **January 17, 2025** (MIL Nos. 6 and 17 filed — “not produced” / “no idea”). This is the core **883-day silence** period referenced throughout these oppositions.

1. **Aug. 18, 2022:** 911 audio served on defense; Rosario deposition (Chambers present). (911 audio includes operator/yes exchange and Plaintiff’s voice.)
2. **Sept. 30, 2022:** Abdelhalim deposition (Chambers present; 911-related testimony).
3. **May 4, 2023:** Substitution of Attorney (TxID 69953800; defense file transferred to PSA).
4. **Feb. 1, 2024:** Reyna Compex subpoena to SFPD (Order CA1147102-021; identical materials requested).
5. **Feb. 26, 2024:** SFPD production in response (SFPD Report 210079556).
6. **Sept. 9, 2024:** CAD identifiers served on Reyna (no written objection).
7. **Jan. 17, 2025:** MIL Nos. 6 and 17 filed — defense “not produced” / “no idea” posture on the record.

Across this window Defendants did not file a motion to compel, a formal discovery objection, or a meet-and-confer challenge to authenticity or provenance of the core materials — satisfying the Mansell estoppel framework as applied in Plaintiff’s briefs and declaration.

DETAILED EXHIBIT ANALYSIS

Exhibit 1: 911 Audio Recording

Chain of Custody: 1. **Origin:** 911 call placed by defendant Abdelhalim immediately after the February 4, 2021 collision. The recorded content includes Abdelhalim’s admissions, the operator’s direct “you hit a pedestrian” question and his affirmative “yeah” (RT 8, p. 112, ll. 16–22; p. 113, ll. 11–17), and Plaintiff Rosario’s own voice identifying the striking vehicle (RT 8, p. 34, ll. 17–25). 2. **SFPD Possession:** Audio retained by SFPD as part of incident documentation. 3. **Production to Plaintiff:** Obtained by Plaintiff’s counsel (Dolan Law Firm) through discovery/subpoena. 4. **Service on Defense:** Served on Chambers/CSK on or about August 18, 2022. 4a. **Jessup**

corroboration (Feb. 18, 2025): “was produced to defense counsel, body cam footage, about five videos, as well as the 911 audio, as well as the CAD log.” (Hr’g Tr. p. 140, ll. 20–22.) “All of that – those items were served on them in the production for discovery as well at Mr. Rosario’s deposition...” (Hr’g Tr. p. 141, ll. 18–23; prior defense firm before Chambers.) 5. **Deposition course:** August 18, 2022 Rosario deposition (Chambers); September 30, 2022 Abdelhalim deposition (Chambers; 911-related testimony). No written authenticity challenge in the 883-day window. 6. **File Transfer:** Transferred to PSA on May 4, 2023 as part of defense file. 7. **Trial Authentication:** Authenticated by Abdelhalim on April 17, 2025: “Yes. That is my voice.” (RT 8, p. 108, l. 28)

Estoppel Analysis: - § 623: Defense had knowledge (Aug 2022), opportunity (883 days), duty to object (reasonable attorney would), and remained silent. Estopped. - § 1414(b): Defense received the audio in discovery, participated in sworn deposition course without timely written challenge, transferred it in the file; Abdelhalim authenticated it at trial. Authenticated by conduct. - **Judicial Estoppel:** Position A (“news to me”) contradicts Position B (“provided by Dolan”). First position accepted by tribunal. Defense is estopped.

Exhibit 2: Body-Worn Camera Footage (~5 videos)

Chain of Custody: 1. **Origin:** Recorded by SFPD officers responding to the February 4, 2021 collision. The footage captures both an independent eyewitness statement (Justin Rosemond) confirming the van/truck struck the pedestrian, and Plaintiff’s own on-scene statement identifying the vehicle. 2. **Production to Plaintiff:** Same production as 911 audio (Aug–Sep 2022). 3. **Service on Defense:** Served on Chambers/CSK in Aug–Sep 2022 (Jessup testimony). 3a. **SFPD direct transmission:** SFPD transmitted body-cam links directly to counsel (Hr’g Tr. Feb. 18, 2025, p. 145, ll. 4–18). 3b. **Jessup corroboration (service on prior firm):** Same quotations as Exhibit 1 chain (Hr’g Tr. p. 140, ll. 20–22; p. 141, ll. 18–23). 4. **File Transfer:** Transferred to PSA on May 4, 2023. 5. **Trial Curation:** Navaratnasingham testified on April 16, 2025 that defense had “five videos” and pared them to “8 or 9 minutes” for the jury. 6. **The Admission:** “They were provided by Dolan.” (RT 7, p. 213, ll. 13–15)

Estoppel Analysis: - § 1414(b): Active curation of videos for trial presentation presupposes

authenticity. Defense waived any authenticity challenge. - **Judicial Estoppel:** The “provided by Dolan” admission contradicts the “unknown provenance” position in MIL 17.

Exhibit 3: CAD Logs

Chain of Custody: 1. **Origin:** Computer-Aided Dispatch records from SFPD. 2. **Production to Plaintiff:** Same production as 911 and BWC (Aug–Sep 2022). 3. **Service on Defense:** Served on Chambers/CSK in Aug–Sep 2022. 4. **Additional Service:** CAD identifiers served directly on Reyna on September 9, 2024. No objection raised. 5. **File Transfer:** Transferred to PSA on May 4, 2023.

Estoppel Analysis: - § 623: Two separate services (2022 and 2024); no objection to either. Estoppel by silence. - § 1414(b): Receipt and retention without objection = authentication by acquiescence.

Exhibit 4: SFPD Report 210079556

Chain of Custody: 1. **Origin:** Supplemental police report relating to the collision. 2. **Subpoena:** Reyna (PSA) issued Compex subpoena (Order CA1147102-021) on February 1, 2024, requesting “all documents, records stored in any format” relating to the collision. 3. **Production:** SFPD produced records on February 26, 2024. 4. **Trial Denial:** Reyna stated on April 16, 2025: “not anything that we received as part of the subpoena.”

Estoppel Analysis: - **Internal Contradiction:** The February 1, 2024 subpoena and February 26, 2024 production are in PSA’s files. The April 16, 2025 denial is false on its face. - § 623: Defense initiated the subpoena. Cannot now claim ignorance of the response.

Exhibit 5: Compex Subpoena Order CA1147102-021

Significance: This document is evidence of defense-side knowledge that the 911/BWC/CAD materials existed and were relevant. Reyna subpoenaed the identical materials in February 2024—while MIL 17 (filed January 2025) claimed “Defendant has no idea where this 911 call log or audio recording came from.”

Estoppel Analysis: - The subpoena presupposes the existence and authenticity of the materials. One does not subpoena records one has never heard of. - This satisfies Element 1 (knowledge) of the Mansell estoppel test.

DATED: April 16, 2026

FRANCISCUS DYLAN ROSARIO